

HEADNOTE

“Rule 262.1(b) RoP requires a concrete and verifiable, legitimate reason for making available written pleadings and evidence upon a request by a member of the public. The wish from a natural person to form an opinion on the validity of a patent out of a personal and a professional interest is not a legitimate reason as required by Rule 262.1(b) RoP.”

COURT
Central Division in Munich

PATENT
EP3666797

KEYWORDS

Rule 262.1(b) RoP request (rejected). Legit...

PROCEEDINGS
Action for revocation

Antigen binding proteins to proprotein
convertase subtilisin kexin type 9
(pcsk9)

Rule 262 Public access to the register

SUMMARY

The Central Division in Munich ruled on an action for revocation. The patent at issue relates to antigen binding proteins to proprotein convertase subtilisin kexin type 9, or PCSK9. According to the headnotes of the decision, Rule 262.1(b) of the Rules of Procedure requires that requests to access written pleadings and evidence from the public must be supported by a concrete and verifiable legitimate reason. The court found that a person's general wish to form an opinion on a patent's validity based on personal and professional interest does not satisfy this legitimate reason requirement.